

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 07/15/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C22-01284 CASE NAME: DUSTIN GRAHAM VS. ALLIED WASTE SYSTEMS, INC. CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearing for Line 2, below. As the Motion for Preliminary Approval and PAGA Settlement is granted and no appearance is required, this CMC is also **vacated**. No appearance is necessary on July 15, 2026.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01284
CASE NAME: DUSTIN GRAHAM VS. ALLIED WASTE SYSTEMS, INC.
HEARING ON MOTION IN RE: PRELIMINARY APPROVAL AND PAGA SETTLEMENT
FILED BY: GRAHAM, DUSTIN

TENTATIVE RULING:

Summary

Plaintiffs Dustin Graham and Jose Valadez's ("Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement is **granted** as set forth herein. No appearance is required at the July 15, 2026 hearing.

Background

Plaintiffs move for an order granting preliminary approval of the Settlement and certifying the Settlement Class with Defendant Allied Waste Systems, Inc. ("Defendant") pursuant to the terms set forth in the Joint Stipulation of Class Action Settlement and Release, which are summarized below.

The total Gross Settlement Amount is \$345,000.00. The Net Settlement Amount, estimated at \$158,311.50, shall be distributed to Class Members and PAGA Group Members on a pro-rata basis after deduction of: (a) attorneys' fees of \$114,988.50 (33.33% of the Gross Settlement Amount); (b) litigation costs not to exceed \$25,000.00; (c) Class Representative enhancement awards of \$10,000.00 each; (d) Settlement Administrator fees of \$7,950.00; and (e) PAGA penalties totaling \$25,000.00.

Plaintiffs request that they be confirmed as Class Representatives and ask that the Court preliminarily approve Class Representative enhancement awards of \$10,000.00 each in recognition of their service to the Class. These awards shall be paid from the Gross Settlement Amount.

Plaintiffs request that the Court appoint the law firms of Castle Law: California Employment Counsel, PC, and Blumenthal Nordrehaug Bhowmik De Blouw LLP as Class Counsel. Class Counsel request attorneys' fees in the amount of \$114,988.50 and reimbursement of reasonable litigation costs not to exceed \$25,000.00, both to be paid from the Gross Settlement Amount.

The Settlement allocates \$25,000.00 for PAGA penalties, to be paid from the Gross Settlement Amount. Of this amount, \$18,750.00 shall be paid as penalties to the California Labor and Workforce Development Agency (LWDA), and \$6,250.00 shall be distributed to PAGA Members on a pro-rata basis from the Net Settlement Amount.

Plaintiffs request that the Court confirm ILYM Group, Inc. as the Settlement Administrator and preliminarily approve payment of \$7,950.00 for administration of the Settlement. Plaintiffs further request that the Court approve the Notice of Class Action Settlement as to form and content and direct that it be mailed by first-class mail to Class Members in accordance with the Implementation Schedule.

Pending final approval, Plaintiffs request that the Court enjoin Plaintiffs and all Class Members from filing or prosecuting any claims, suits, or administrative proceedings (including claims with the Division of Labor Standards Enforcement) regarding claims released by the Settlement, unless such Class Members have filed valid Requests for Exclusion with the Settlement Administrator. The released

claims include claims for unfair competition, failure to pay minimum and overtime wages, and failure to provide meal and rest periods.

Plaintiffs request that the Court schedule a Final Approval Hearing to determine whether the proposed Settlement, Class Counsel Award, and Class Representative Service Awards should be finally approved as fair, reasonable, and adequate. Class Members may participate in, opt out of, or object to the Settlement as set forth in the Settlement Notice and Joint Stipulation. Defendant shall provide Class Information to the Settlement Administrator within twenty-one (21) days following preliminary approval.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiffs' counsel seek attorneys' fees of \$114,988.50 representing one-third of the total settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a *Lodestar* cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a *Lodestar* cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.* at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$25,000.00 and the requested representative payment of \$10,000 for each named plaintiff and class representative will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

Upon review, there is good cause to find that the Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause, therefore appearing, the Court makes the following orders and ruling.

RULING

1. The settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on September 29, 2025, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on July 15, 2026.

3. 9:00 AM CASE NUMBER: C22-01164
CASE NAME: ALEJANDRO TORRES VS. B & M TEAR OFF, INC.
HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: TORRES, ALEJANDRO

TENTATIVE RULING:

Summary

Plaintiffs Alejandro Torres', individually, and on behalf of others similarly situated ("Plaintiff") Motion for Leave to File Plaintiff's First Amended Complaint, filed on September 30, 2026, is unopposed and is **granted**.

Ruling

1. Plaintiff's Motion for Leave to file First Amended Complaint is **granted**.
2. Plaintiff shall file and serve the First Amended Complaint no later than ten (10) days from the date of this hearing.
3. Defendants' responsive pleading shall be filed no later than thirty (30) days from the date of service.